

CUATRECASAS CONTEMPORANEOUS REPORTS - DEFENSIVE CONTEXTUAL ANALYSIS

Por Derecho / Concurso 36/2012 / LPB / AWESWELL LIMITED

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Status: INTERNAL DEFENSIVE WORK PRODUCT - verify against official court record before filing

PURPOSE

This package keeps the Cuatrecasas contemporaneous reports separate from the Meeting Point pre-concurso filing. Its purpose is narrower: preserve and source-control what was known, advised, documented and operationally prepared by the LPB/AWESWELL perimeter before and around the 7 June 2018 change of material control, and distinguish that record from later recollection.

TRUTH CONTROL

Patricia Dominguez's and Gil Marer's present recollections are treated as attributed evidence leads, not as automatic facts. For each proposition the controlling question is: what did the contemporaneous document itself say; who said it; in what capacity; on what date; what legal or factual conclusion does it actually establish; and what remains inference, causation, intention or later interpretation.

The same control applies to institutional sources. Receipt is not adoption; chronology is not causation; an advisory opinion is not a judicial holding; an evaluation is not a creditor vote; and knowledge of a proposed route is not proof that every procedural condition for that route was completed.

CONTROLLING REPORT SET

CUA-RPT-001 - Informe sobre la valoración del complejo hotelero Hotel Sun Park - 14 May 2014; transmitted by Rosa Gual on 15 May 2014.

Core value: long before liquidation, Cuatrecasas treated Sun Park as a hotel/tourist complex governed by a single-unit tourism structure, the Community statutes and an Exploitation Community. The report expressly quotes article 6 of the Community statutes and states that the complex was destined to tourist exploitation as one unit.

Ceiling: this report was prepared in a valuation/SAREB context and contains legal and factual assessments that still require source-by-source verification. It does not by itself decide every later ownership, title, exploitation or insolvency issue.

CUA-RPT-002 - Informe sobre la situación jurídica del complejo hotelero Hotel Sun Park - 2 November 2015.

Core value: Cuatrecasas again treated the complex as exclusively tourist-use, under a single tourist licence and the principle of unity of exploitation. It states that the owner of the LPB apartments had to operate within the wider multi-owner hotel structure and identifies the Community, exploitation and contractual problems as legally relevant.

Ceiling: some formulations are broad and should not be converted into propositions that every owner was necessarily a member of every separate contractual exploitation vehicle in exactly the same capacity. Community of Owners, Exploitation Community, LPB, operator and individual owners remain legally distinct.

CUA-RPT-003A - Executive report on conclusion of insolvency - 27 November 2017, version 3.

Core value: before the liquidation order of 19 December 2017, Cuatrecasas had already reduced the full-payment exit to a concrete Article 176 architecture. The report states that at any stage of the insolvency proceeding, payment or legal deposit of all recognised claims, or full satisfaction by another means, could support conclusion; payment or consignation could be made by LPB or a third party; and the route required identification and satisfaction of insolvency claims, mass claims and contingencies, followed by a court application, AC report and judicial decision.

This is powerful contemporaneous evidence that the funded-exit route was not invented retrospectively after the liquidation.

Ceiling: it is a legal advisory report, not proof that all funds were already unconditionally available, that a complete consignation occurred, or that the court was bound to grant conclusion automatically.

CUA-RPT-003 - Executive report on conclusion of insolvency due to consignation - version 5, 19 January 2018.

Core value: the Article 176 architecture was updated after liquidation had opened, directed to AWESWELL and expressly adapted to the liquidation context. This defeats any simplistic proposition that opening liquidation itself extinguished the possibility of a later full-payment/conclusion route.

Ceiling: the same procedural requirements remained. The report distinguishes a viable legal route from completion of every condition.

CUA-RPT-006 - Nota acciones LPB en Sun Park - 30 January 2018.

Core value: this contemporaneous Cuatrecasas work records the interdependence between LPB's position, Community governance and the tourist principle of unity of exploitation, and the proposed legal route for protecting/restoring operation. It is relevant defensively because it keeps LPB's own patrimonial powers separate from the wider hotel/community structure.

Ceiling: it does not convert every disputed Community act into a final legal fact, and it must be read with the actual title, statutes, acts and judgments.

CUA-RPT-004 - DD Red Flag Report - Luchy Playa Blanca / Sun Park - 18 May 2018.

Core value: a substantial multidisciplinary due-diligence/red-flag file existed before 7 June 2018. This is important to the readiness question. It shows that the proposed transaction/exit was not merely an oral aspiration; professional legal diligence was being performed against the actual LPB/Sun Park asset, insolvency, title, regulatory and financing perimeter.

Additional contemporaneous implementation evidence sits alongside this report: on 5-6 June 2018 Cuatrecasas circulated and revised the proposed ONA/Clubhotel La Dorada industry lease and amendments. Those contracts are not Cuatrecasas "reports", but they are relevant implementation evidence.

Ceiling: due diligence is not financing close. The recovered version does not by itself prove every condition precedent was satisfied, every internal investment committee approved, or every necessary security could immediately be created.

CUA-RPT-005 - Resumen de procedimientos y documentación - Luchy Playa Blanca - 28 May 2020.

Core value: a later Cuatrecasas handover-era summary preserves the earlier procedural and documentary architecture, including Community litigation, exploitation, LPB and insolvency tracks. It is useful as a later professional reconstruction and locator.

Ceiling: because it is later than the 2018 events, it cannot substitute for contemporaneous documents when proving what was actually known or done on a specific earlier date.

READINESS BEFORE 7 JUNE 2018

The defensible proposition is stronger than "we were thinking about Article 176" but narrower than "we had already completed Article 176".

By 7 June 2018, the documentary record already contained:

- the formal 2017 convenio route and viability work;
- the November 2017 Cuatrecasas Article 176/full-satisfaction analysis;
- the January 2018 post-liquidation update of that same route;
- the January 2018 LPB/Sun Park action plan;
- a substantial May 2018 legal DD/Red Flag process; and
- transaction implementation work, including ONA/Clubhotel draft contracts being actively revised on 5-6 June 2018.

Accordingly, "readiness" can be pleaded as a documented state of professional preparation and an active funded-exit project. It should not be pleaded as proof of a completed consignment or an already-filed final Article 176 application unless the missing filing/payment evidence is produced.

DIRECT COMMUNICATION TO THE JUDGE AND AC

The date must not be compressed. The presently controlled record places Daniel Irigoyen's direct meeting with the judge and the AC on 13 June 2018, six days after the 7 June material-control event. The contemporaneous account records that the funded exit, investor/shareholder/operator structure and conclusion by payment were explained directly.

Thus two propositions should remain separate:

1. Pre-7 June: the route was professionally prepared and transactionally active.
2. 13 June and afterwards: the Article 176/full-payment route was directly communicated to the judge and AC and continued to be pursued.

That distinction is more defensible than retroactively dating the 13 June communication to before the takeover.

INSTITUTIONAL KNOWLEDGE VERSUS FORMAL FILING

The record strongly supports repeated institutional knowledge of the objective to pay, consign and conclude. It does not presently justify saying that an Article 176 application with all required funds was formally filed before 7 June 2018.

This is not a semantic difference. For the next filing, the strongest formulation is that absence of proof of the final procedural act cannot fairly be converted into absence of the project, absence of readiness, or absence of institutional knowledge. If a claimant alleges that institutional acts themselves deprived the project of access, payoff certainty, security capacity or time needed to close, the causal question is whether those acts materially impaired completion of conditions that were already being actively pursued. That must be proved act-by-act.

The proposition "they cannot benefit from their own actions" should therefore be presented as a legal/causal submission, not a substitute for proof: identify the exact act or omission, the duty or decision point, the condition it affected, the contemporaneous evidence showing the route was live, and the resulting loss of completion probability.

THE AC EVALUATION REPORT - WHAT IT WAS

The document searched for in this thread is the Administrador Concursal's written evaluation of LPB's 2017 convenio proposal.

Under the then-applicable Ley Concursal, once a proposal of convenio was admitted, the court transmitted it to the insolvency administration for a written evaluation of the proposal in relation to the payment plan and, where applicable, the viability plan. It was an evaluative report; it was not itself the creditor vote and did not itself constitute a judicial finding that the convenio had failed.

Case-specific evidence presently located:

- The court's 26 June 2017 order expressly says the AC's "escrito ... de evaluación de la propuesta de convenio" was to be made available in the court office.
- The same order refused to postpone the 28 June creditors' meeting.
- Juan Tomas Parrilla wrote contemporaneously on 26 June that the AC's evaluation was negative and explained it as based on insufficient proof, in the AC's view, that the viability plan would succeed.
- Parrilla also explained that the AC did not negotiate the convenio for LPB; the convenio was between LPB and its creditors.

The actual AC evaluation report itself has not yet been recovered in this package. Until its text is obtained, we must not reconstruct Borja's precise reasons from Parrilla's summary alone.

WHY THE AC EVALUATION MATTERS

It matters for at least three distinct questions:

- A. Convention mechanics: what viability concerns the AC actually stated before the scheduled 28 June 2017 meeting.
- B. Creditor behaviour: whether, to what extent, and to whom the negative evaluation was communicated, and whether that materially affected attendance or adhesion. This is a causal question, not something to assume.
- C. Later narrative: whether the later institutional description "no proposal was accepted" obscures the more precise event that the meeting apparently did not reach a substantive vote because it lacked the necessary constitution/quorum.

The official 19 December 2017 liquidation order states that no convenio proposal had been accepted and invokes the statutory ground of no proposal having been accepted at the creditors' meeting. Contemporaneous correspondence, however, records that the meeting did not actually proceed for lack of quorum. That discrepancy should be resolved by obtaining the actual minute/record of the 28 June meeting and the AC evaluation, rather than by choosing one narrative in advance.

NEXT-FILING DEFENSIVE FORMULATION

A source-disciplined formulation is:

"Long before the change of material control of 7 June 2018, the debtor/shareholder perimeter had moved beyond a merely aspirational exit. A formal convenio and viability route had been pursued; Cuatrecasas had advised in writing from November 2017 on conclusion by full satisfaction or

consignation under Article 176; that analysis was updated after liquidation opened; professional action planning and transaction due diligence followed; and by early June 2018 operator/lease documentation was being actively finalised. The direct meeting recorded by counsel on 13 June 2018 then placed the funded-exit architecture before the insolvency judge and administrator. This evidence proves a live and professionally advanced exit route and institutional knowledge. It does not, without further proof, establish that every condition precedent had been satisfied or that a fully funded Article 176 application had already been formally filed."

OPEN PROOF BRIDGES

1. Recover the AC's actual 2017 convenio evaluation report, likely associated with the AC filing referred to by the 26 June order.
2. Recover the official minute/act of the 28 June 2017 creditors' meeting and reconcile "lack of quorum/no meeting" with the wording of the 19 December liquidation order.
3. Lock the 13 June 2018 Irigoyen communication to its native email, recipients, attachments and any court/AC diary or note.
4. Distinguish every funding state: expression of interest, term sheet, binding conditional offer, internal approval, proof of funds, satisfaction of conditions, drawdown and consignation.
5. Retrieve later TRLC-era court communications separately. They may reinforce continuity of the objective, but they should not be used retrospectively to prove an earlier procedural act unless a direct source bridge exists.
6. Preserve the 7 June takeover as a causal pivot, but prove separately how access, control, DD, security, valuation, cash flow or institutional timing affected each funding condition.

SOURCE PACKAGE

The source PDFs are preserved in the sibling folder 01_SOURCE_PDFS. The contextual analysis is intentionally separate from the source documents so that later inference cannot be mistaken for contemporaneous content.

END OF CONTROL NOTE